

Person Filing	Dana Marie Whitfield
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Representing ☒ Self or ☐ Attorney for:	
Attorney Bar Number	

For Clerk's Use Only

Superior Court of Pima County

COURT OF ARIZONA

IN

PIMA

COUNTY

STATE OF ARIZONA

Case Number:

-VS-

PETITION TO SEAL CRIMINAL CASE RECORDS

(ARS § 13-911)

Defendant (FIRST, MI, LAST)

OR if no charges were filed:

☐ Amended (corrected) petition

Select if you are amending an existing petition. Include existing case number above.

In Re the Matter of:

Dana Marie Whitfield

Name (FIRST, MI, LAST)

Read ARS § 13-911 in its entirety before completing this petition. This petition is intended to help those who are seeking to seal a criminal case record under ARS § 13-911 and refers solely to the records that exist under the control of the courts, Department of Public Safety, prosecutors' offices, and law enforcement agencies. Any case record that was published or distributed prior to sealing may still be accessible and may not be impacted by the granting of an order to seal case records.

NOTE: Items marked with an asterisk (*) are required fields.

Pursuant to ARS § 13-911, Petitioner hereby petitions the court to order the sealing of the following criminal case records related to Petitioner, as indicated in this petition. *(Check only those that apply)*

Case Number:

- ☐ Arrest records of an arrest occurring on or about by the following law enforcement agency: _____.
- ☐ Charging documents created by the following prosecuting agency *(Do not check this box if no charges were filed)*: _____.
- ☐ All records relating to the eligible charge(s) in court case number: _____.

As grounds for this petition, Petitioner states as follows:

SECTION I. CASE RECORDS RELATED TO A CRIMINAL OFFENSE

1. PETITIONER'S INFORMATION (required)*

- a. Petitioner's name:* Dana Marie Whitfield
- b. Petitioner's address:* 417 North Cordova Avenue
- c. Date of birth:* 03/14/1988
- d. Email address:* dana.whitfield@example.com
- e. Name at the time of arrest, if not the same as above:* Dana Marie Whitfield

2. CASE RECORD INFORMATION (required)*

- a. What were you charged with or the offense for which you were arrested if no charges were filed:
Possession of a dangerous drug, A.R.S. 13-3407(A)(1)
- b. Court that adjudicated the charge(s) or if charges were not filed, the court that would have adjudicated the charge(s): Superior Court of Pima County
- c. Court case number if charge(s) were filed: _____
1. Count I: _____
2. Count II: _____
3. Count III: _____
4. Count IV: _____
- ☐ Additional counts continue on a separate page.
- d. If no charges were filed, did you have an initial appearance? ☐ Yes ☒ No.
If you marked "yes," was your initial appearance in this court? ☐ Yes ☐ No.

IMPORTANT: If no charges were filed but you had an initial appearance, you MUST file in the court where you had your initial appearance. If you were arrested but no initial appearance was held, you must file in the superior court in the county where you were arrested.

3. ADDITIONAL CASE RECORD INFORMATION (if known)

- a. Location of arrest: _____
- b. Name of the arresting agency: _____
- c. Date of arrest:
- d. Name of the prosecuting agency if charges were filed: _____

- e. Name of the justice court and the justice court case number if the case was initially filed in a justice court but was transferred to the superior court. _____

4. DESCRIBE YOUR SITUATION (required)*

You must check at least one box that applies to your situation.

- ☒ I was arrested for a criminal offense and no charges were filed. **If checked, please go to Section III.**
- ☐ I was charged with one or more criminal offenses and the charge(s) were subsequently dismissed or resulted in a not guilty verdict at trial. A dismissal or not guilty verdict was entered on .
- ☐ I was charged with a criminal offense and a judgment of guilt was entered on .

SECTION II. SENTENCE COMPLIANCE

- 1. I have satisfied **all required monetary terms of the sentence**, including outstanding fines, fees, restitution, or other court-ordered financial obligations.*
☐ Yes ☐ No ☐ N/A.
- 2. I have completed **all other terms of the sentence**, such as incarceration, probation, employment, classes, drug/alcohol testing, or other requirements.*
☐ Yes ☐ No ☐ N/A.
- 3. I have received an absolute discharge from the Arizona Department of Corrections.*
☐ Yes ☐ No ☐ N/A. (If you checked “yes,” it is **strongly encouraged** that you attach a certificate of absolute discharge.)
- 4. I have been discharged from probation.*
☐ Yes ☐ No ☐ N/A. (If you checked “yes,” it is **strongly encouraged** that you attach a copy of your order of discharge.)

You cannot file this petition if you checked “no” to question 1, 2, 3, or 4 above.

SECTION III. PRIOR SEALING OF RECORD(S)

1. Have you previously filed a petition to seal case records under ARS § 13-911 in this case?

☐ Yes ☐ No.

If yes, what was the date of your last petition?

2. Have you had case records sealed under ARS § 13-911 in a previous case?

☐ Yes ☐ No.

If yes, what was the date you completed the non-monetary conditions of probation or sentence and were discharged by the court?

SECTION IV. OTHER INFORMATION FOR THE COURT

1. If you are filing this petition to have a conviction sealed, have you been convicted of any other offense since the conviction for which you are asking the court to seal records?

☐ Yes ☐ No ☐ N/A.

2. Are there any pending charges that you are aware of that have been filed against you?

☐ Yes ☐ No ☐ Unknown.

- a. If you have additional pending charges, please provide:

i. Jurisdiction: _____

ii. Charges filed: _____

iii. Date of the charges:

3. Unless the petitioner, prosecutor, or victim requests a hearing, the court may grant or deny a petition without a hearing. Do you request a hearing? ☐ Yes ☐ No.

4. Is there anything else you would like the court to consider regarding this petition?

5. ☐ Attached is other pertinent documentation (non-originals). List attached documents:

Case Number:

DECLARATIONS AND ACKNOWLEDGEMENTS

I declare under penalty of perjury that the information I have provided in this petition and any attachments are true and correct to the best of my knowledge.

I understand that this petition may be dismissed if the information I have provided is insufficient. I also understand that this petition may be denied if information in this petition is found to be inaccurate.

Petitioner / Petitioner's Attorney Signature		Date	
Printed Name:	Dana Marie Whitfield		
Address	417 North Cordova Avenue		
City, State, Zip Code	Tucson, AZ 85701		

NOTICE

You must notify the court of any new charges that are filed against you after this petition is filed, regardless of state or jurisdiction.

If you filed an appeal from a limited jurisdiction court regarding the charges that you seek to have sealed, you must also file a petition in superior court if you want those records sealed.

For Clerks Use Only

Superior Court of Pima County

COURT OF ARIZONA

IN

PIMA

COUNTY

STATE OF ARIZONA

Case Number:

-vs-

**ORDER REGARDING PETITION TO
SEAL CRIMINAL CASE RECORDS
(ARS § 13-911)**

Defendant (FIRST, MI, LAST)

OR if no charges were filed:

In Re the Matter of:

Dana Marie Whitfield

Name (FIRST, MI, LAST)

Based on the information presented to the court, pursuant to ARS § 13-911, the petition requests sealing of the following records: *(Check only those that apply)*

- ☐ Arrest records of an arrest occurring on or about _____ by the following law enforcement agency: _____.
- ☐ Charging documents created by the following prosecuting agency: _____.
- ☐ All records relating to the eligible charge(s) in court case number: _____.

I. PETITIONER'S INFORMATION

- a. Petitioner's name: Dana Marie Whitfield
- b. Date of birth: 03/14/1988
- c. Name at the time of arrest, if not the same as above: _____

II. THE COURT MAKES THE FOLLOWING FINDINGS OF FACT AND CONCLUSIONS OF LAW: *(Check only those that apply)*

- ☐ The Court is initially unable to act on the petition because it lacks a sufficient description of the records to be sealed. *(If this statement is selected, go directly to the Ordering section to dismiss the petition)*
- ☐ The court provided a copy of the petition and supporting documentation to the applicable prosecuting agency.
- ☐ It has been at least 60 days since the Petition to Seal Criminal Case Records was filed, **OR** it has been less than 60 days since the Petition to Seal Criminal Case Records was filed, but the court has received notice that the prosecutor and all victims who have made a request for post-conviction notice do not object to the Petition to Seal Criminal Case Records.
- ☐ The court has reviewed any report provided by the Department of Public Safety under ARS § 13-911(H).
- ☐ The offense(s) described in the petition is eligible to be sealed under ARS § 13-911.
- ☐ The petitioner is requesting sealing of records for a conviction and:
 - ☐ The timeframes required by ARS § 13-911 have passed.
 - ☐ The petitioner has completed all terms and conditions of sentencing, including the payment of all monetary obligations and restitution, if applicable.
- ☐ Granting the petition **is** in the best interests of the petitioner and the public's safety.
- ☐ Granting the petition **is not** in the best interests of the petitioner or the public's safety, or the petitioner is requesting sealing of records but is not entitled to have the requested records sealed because:
 - ☐ The offense(s) described in the petition is not eligible to be sealed under ARS § 13-911.
 - ☐ The timeframes required by ARS § 13-911 have not passed for a conviction.
 - ☐ The petitioner has not completed all terms and conditions of sentencing.
 - ☐ Other: _____.
- ☐ Other findings: _____.

Case Number:

III. THEREFORE, IT IS ORDERED:

A. ☐ **DISMISSING** the petition to seal criminal case records for the following reason(s):

☐ Failure to provide sufficient information.

☐ The petition was not filed in the correct court.

☐ Other: _____

B. ☐ **DENYING** the petition to seal criminal case records.

C. ☐ **GRANTING** the petition to seal criminal case records.

IT IS FURTHER ORDERED, in accordance with ARS § 13-911,

Sealing all records relating to the petitioner's arrest, conviction and sentence for the particular offense(s) identified above.

Directing the Clerk of the Court to seal all case records relating to the petitioner's arrest, conviction, and sentence for the particular offense(s) identified above and transmit a copy of this order to the Department of Public Safety and the prosecutor.

Judicial Officer

Date

IF THE COURT HAS DENIED YOUR PETITION, YOU MUST WAIT AT LEAST 3 YEARS AFTER THE DATE OF THE DENIAL BEFORE YOU CAN FILE A NEW PETITION.